

23BBCV00729 23BBCV00729

County: los-angeles

Division: Civil Law and Motion

Department: B

Hearing date: 2026-06-26

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BUR%2CB%2C06%2F26%2F2026

Source SHA-256: c5bb3af98d4df26b573c665d3d191757e5fb71256e8ec76da8ed8ec1a3f7b0a4

Case Number: 23BBCV00729 Hearing Date: June 26, 2026 Dept: B

Hon. Lee S. Arian, Dept B

MOTION FOR PREJUDGMENT INTEREST

Hearing Date: 06/26/26

CASE NO./NAME: 23BBCV00729/ARABIA v. AMERICAN HONDA
MOTOR COMPANY, INC.

Moving Party: Plaintiff
CAROL J ARABIA

Responding Party: Defendant AMERICAN HONDA MOTOR COMPANY,
INC.

Notice: Sufficient

Ruling: GRANT

BACKGROUND

This is a Song-Beverly Act (lemon law) action. On April 3, 2023, Plaintiff filed the Complaint against Defendant, alleging that Defendant failed to repair Plaintiff's 2020 Honda Odyssey, VIN: 5FNRL6H70LB012268 (the "Vehicle") in a reasonable number of attempts when it manifested several defects, which substantially impaired the Vehicle's safety and use.

On May 8, 2023, Defendant filed its Answer to the Complaint.

From April 27, 2026 through May 5, 2026, the matter was tried before a jury, which returned a verdict in favor of Plaintiff for \$34,043.14 in damages. Plaintiff now moves for prejudgment interest in the amount of \$22,317.36 per Civil Code Section 3287, subdivision (a) or alternatively, \$10,533.57 per Civil Code Section 3287, subdivision (b). Defendant opposes.

LEGAL STANDARD

“A person who is entitled to recover damages certain, or capable of being made certain by calculation, and the right to recover which is vested in the person upon a particular day, is entitled also to recover interest thereon from that day, except when the debtor is prevented by law, or by the act of the creditor from paying the debt. This section is applicable to recovery of damages and interest from any debtor, including the state or any county, city, city and county, municipal corporation, public district, public agency, or any political subdivision of the state.” (Civ. Code, § 3287, subd. (a); cf. Civ. Code, § 3287, subd. (b) [“Every person who is entitled under any judgment to receive damages based upon a cause of action in contract where the claim was unliquidated, may also recover interest thereon from a date prior to the entry of judgment as the court may, in its discretion, fix, but in no event earlier than the date the action was filed.”].)

“The purpose of prejudgment interest is to compensate plaintiff for loss of use of his or her property. [Citation.]” (North Oakland Medical Clinic v. Rogers (1998) 65 Cal.App.4th 824, 828.) “Under subdivision (a) the court has no discretion, but must award prejudgment interest upon request, from the first day there exists both a breach and a liquidated claim.” (Id.) “Under subdivision (b) the court has discretion to decide whether prejudgment interest should be awarded on an unliquidated contractual claim. It is up to the judge to determine the date from which interest runs, but in no event may the court fix a date earlier than the filing of the action.” (Id. at 829.)

DISCUSSION

As preliminary

matter, the Court notes that Defendant contends the present motion is not ripe for adjudication because Plaintiff has not filed a proposed judgment on the jury verdict with Court. (Opp. at 3:4-9.) However, Defendant cites to no legal authority to support the assertion that a proposed judgment on the jury verdict must be filed before a party may move for prejudgment interest. Contrarily, “prejudgment interest should be awarded in the judgment on the basis of a specific request therefor made before entry of judgment.” (North Oakland Medical Clinic v. Rogers (1998) 65 Cal.App.4th 824, 830.) As such, the present motion is ripe for adjudication on the merits.

With respect to

Plaintiff’s request for prejudgment interest under Civil Code Section 3287, subdivision (a), Defendant contends that the amount of damages were uncertain and incapable of being made certain by calculation except by jury verdict. (Opp. at 3:11-4:26.) The Court agrees.

Although each party has cited to cases that support their view, the Court finds that the amount of damages were uncertain until the jury decided upon such damages. Thus, the Court does not award pre-judgment interest under Section 3287(a).

However, such

interest under Section 3287(b) is appropriate.

Plaintiff, while able to use her vehicle, was unable to enjoy a vehicle consistent with what she contracted to buy, i.e., a vehicle with no significant defect. And, Defendant failed to comply with the contractual warranty it was required to honor. As such, the Court finds a contractual basis for interest under Section 3287(b). In its discretion, the Court awards pre-judgment interest under that section from the date of the Complaint.

Defendant argues that lemon law actions are limited to an interest rate of seven (7) percent per annum not ten (10) percent per annum as proposed by Plaintiff. (Opp. at 9:12-24; Reply at 10:2-7.) The cases cited by Defendant do not state that the interest rate for prejudgment interest in a lemon law action is seven (7) percent. By contrast, the California Constitution states that: “For any loan or forbearance of any money, goods, or things in action, if the money, goods, or things in action are for use primarily for personal, family, or household purposes, at a rate not exceeding 10 percent per annum.” (Cal. Const., art. XV, § 1, subd. (1).) The Vehicle in this case is a “good” for the purposes set forth in the California Constitution and Song-Beverly Act. Thus,

Plaintiff is entitled to prejudgment interest at the rate of ten (10) percent per annum.

CONCLUSION
AND ORDER

Plaintiff Carol

J. Arabia's motion for prejudgment interest is granted in the amount of \$10,533.57 pursuant to this Court's discretion under subdivision (b) of Civil Code § 3287.

Plaintiff Carol

J. Arabia shall provide notice of this order.

Parties

who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court's website at www.lacourt.org. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.